

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUPP012195: JAMES WALD, et al. vs TRAVIS EDWARD MARTIN, et al.

09/17/2026 in Department 42

Motion to Declare Travis Martin a Vexatious Litigant Pursuant to CCP 391

Motion: Plaintiffs' Motion to Declare Travis Martin a Vexatious Litigant Pursuant to C.C.P. § 391 (*opposed*).

Tentative Ruling:

Plaintiffs request for judicial notice is granted.

Plaintiffs' Motion to Declare Travis Martin a Vexatious Litigant Pursuant to C.C.P. § 391 is GRANTED.

Defendant Travis Martin is declared a vexatious litigant pursuant to Code of Civil Procedure section 391, subdivision (b)(3).

Defendant Travis Martin is required to obtain a pre-filing order under Code of Civil Procedure section 391.7.

The Court Clerk is directed not to accept for filing any new litigation by this party without an order from the presiding judge granting leave to file.

The request that Defendant Travis Martin post a security to proceed with his cross-complaint is denied without prejudice. Plaintiffs have not adequately addressed the evidence and pleadings to allow the Court to rule that Mr. Martin has no reasonable chance of prevailing on his cross-claim. Plaintiffs may bring a separate motion addressing the posting of a security.

Notice to be provided by the moving party.

Background: This is an action by an underage victim of childhood sexual abuse ("PW") and her parents James Wald ("James") and Natalie Wald ("Natalie") (collectively, "the Walds") including a business called Elite Sounds Company, LLC ("Elite Sounds") (collectively, "Plaintiffs" or "Cross-Defendants") against her perpetrator, Defendant/Cross-Complainant Travis Edward Martin ("Defendant," "Cross-Complainant," "Martin," or "Travis"), pro per, his mother, and his company Defendant Airlink Internet, Inc. ("Airlink"). This action has been heavily litigated.

The Walds allege that Mr. Martin continues to harass and defame them from behind bars. Mr. Martin has filed cross-claims against the family. James is P.W.'s guardian ad litem.

Representation: Plaintiffs are represented by attorneys from Bamieh & De Smeth, PLC. Mr. Martin has filed multiple unsuccessful motions seeking to have the attorneys removed from the case or sanctioned. Mr. Martin has also filed several unsuccessful motions seeking to have James removed as P.W.'s GAL.

Mr. Martin and his mother, Donna, are self-represented. Airlink, a corporate entity, has made some appearances through an attorney. Mr. Martin is its principal.

Criminal Convictions: In October 2022, a jury convicted Mr. Martin of seven counts of lewd acts upon a child, P.W. (Pen. Code, § 288, subd. (a)), as well as one count each of using a minor for sex acts (*id.*, § 311.4, subd. (c)) and possession of child pornography (*id.*, § 311.11, subd. (a)). The court sentenced him to a total prison term of 610 years to life. Subsequently, P.W., her parents James and Natalie Wald, and a related corporation filed a complaint alleging various causes of action related to Mr. Martin's criminal conduct and his alleged "smear campaign" against the Walds. Mr. Martin filed a cross-complaint against the Walds and P.W. alleging negligence, menacing-duress, conspiracy, intentional infliction of emotional distress, and defamation. The gist of the allegations in the cross-complaint is that the Walds sex-trafficked their young daughter by knowingly allowing Mr. Martin to spend hours alone with P.W., a known sex offender; the Walds breached a duty of care they owed him to protect him from being accused of sexual assault; Natalie used the threat of returning to prison to blackmail him; the Walds sent him to prison "for the purposes of pure selfish greed" to obtain control of the company; and the Walds slandered him by stating that he molested P.W. The court granted the Walds' anti-SLAPP motion, which was overturned in part on appeal as to the menacing-duress claim.

Complaint: In the operative complaint, Plaintiffs assert causes of action against Mr. Martin, Donna and Airlink for (1) childhood sexual assault; (2) sexual battery; (3) IIED as to P.W.; (4) IIED as to the Walds; (5) negligence; (6) defamation as to the Walds; (7) intentional interference with prospective economic relations as to Elite Sounds and the Walds; and (8) intentional interference with contractual relations as to Elite Sounds and the Walds.

Plaintiffs allege that they resided at a property owned by Mr. Martin ("Foothill property"), where Mr. Martin operated his business, Airlink. Mr. Martin and his mother, Donna, owned another property as well ("Abbey property"). When he was in his 20s, Mr. Martin was convicted of felony molestation of an 11 year-old girl, and served time in prison. Plaintiffs were unaware of this, but Donna knew of his prior conduct. Plaintiffs had a trusting relationship with Mr. Martin as a friend and business associate. They sometimes left P.W. alone at the Foothill property and Abbey property. Mr. Martin began sexually abusing P.W. when she was 4 years old, and continued until she was 6 years old, when she reported it to her mother, Natalie. Plaintiffs believe the abuse often occurred when Donna was present on the same property as P.W. and Mr. Martin, knew they were alone in a bedroom, and deliberately did not interfere with the molestation. In November 2021, P.W. reported the abuse to her parents, who notified law enforcement. Mr. Martin was then arrested, and convicted on October 3, 2022. Natalie testified at the sentencing hearing. Mr. Martin then wrote her a scathing 5-page letter, accusing her of knowingly allowing her child to be sexually abused, and describing in detail the nature of the abuse he inflicted on P.W. and her response to the abuse. The letter is of such a graphic nature as to repulse and shock the conscience of any person, most of all the parents of the victim. After his imprisonment, Mr. Martin began a scheme to disseminate false and defamatory statements via his friends, accusing the Wards of trafficking P.W. The statements were deliberately sent to the Walds, their friends, their church, and associates of James's business, Elite Sounds.

The fourth cause of action for IIED is based on Mr. Martin's alleged smear campaign against the Walds, and the letter he sent to Natalie during the sentencing hearing. Those communications are alleged in detail in the sixth cause of action. Plaintiffs allege that this conduct is extreme and outrageous conduct, and they sustained intense mental anguish, humiliation, and outrage as a result. They further allege to have suffered severe emotional distress, and to have been deprived of their privacy and personal dignity. Plaintiffs allege that they suffer the shame of knowing what their small child endured with Mr. Martin's abuse.

The sixth cause of action for libel describes multiple written defamatory statements, including posts on their church's Yelp reviews from an anonymous poster, and Elite Sounds's Facebook page by "Francis Gallagher." "Francis Gallagher" later posted screenshots of testimony taken out of context, with the caption "She KNEW he was a registered sex offender before her daughter was born!" Those statements were dated May 10, 2023. In May 2023, "Frank Gallagher" emailed Vincenzo Giammanco, Elite Sounds's business partner, stating his company CBF Productions continues to hire James despite knowing he and his wife admitted in court testimony to sex trafficking their 4 year old daughter, and they knew the abuse was happening while receiving over \$100,000 from the sex offender. Ventura County Sheriff Detective Megan Yates communicated with the Pleasant Valley State Prison that she suspected that Mr. Martin was the true source of the defamatory statements, and evidence was found on a state-issued tablet. On August 2, 2023, Mr. Martin sent or caused to be sent a defamatory email to employees of Ventura Missionary School—Natalie's place of employment—stating that the Walds admitted to knowing their daughter was being sexually abused, that they were evil people who had committed multiple crimes, and the DA is derelict in his duties by allowing them to remain uncharged around their own children and hundreds of children in their care. Mr. Martin coordinated the communications through his friends. The statements are false, and caused the Walds to be publicly humiliated, shamed, vilified, and hated³ within their social and business communities. Mr. Martin acted to injure the Walds in their occupations by spreading lies to employers and clients. As a result, the Walds suffered extreme emotional distress requiring psychotherapy.

The seventh cause of action for intentional interference with prospective business relations is based on the same allegations, except the basis for the claim is that Mr. Martin's conduct interfered with their business dealings with Giammanco's business, CBF Productions, to service its "Boots and Brews Music Festival" through Elite Sounds. The Walds had worked with CBF multiple times in the past, each event requiring a separate contract. Mr. Martin spread the defamatory statements with the intention of disrupting Elite Sounds.

The eighth cause of action for intentional interference with contractual relations is based on the same allegations, except that they allege that Elite Sounds already had a contract with CBF to service the Boots and Brews Music Festival.

On June 15, 2026, Plaintiffs filed a First Amended Complaint with the same causes of action.

Cross-Complaint & Anti-SLAPP: Mr. Martin filed a cross-complaint against the Walds, asserting causes of action for negligence, menacing-duress, conspiracy, intentional infliction of emotional distress, and defamation.

The Walds' anti-SLAPP motion to the cross-complaint was granted, and they were awarded fees and costs in the amount of \$14,037.27 (\$198.45 in fees plus \$13,838.82 in costs).

Mr. Martin appealed. The Court of Appeal reversed the order granting the anti-SLAPP motion only as to the "menacing-duress" cause of action.

Separate Lawsuit: In July 2025, Defendant Mr. Martin filed a separate lawsuit, Ventura County Superior Court Case No. 2025CUDF048144, naming attorney Ron Bamieh, Bamieh & De Smeth, PLC, among many others, as defendants.

First Amended Cross-Complaint ("FACC"): Mr. Martin filed his FACC against the Walds on 06/15/26, asserting causes of action for menace and duress/rescission/restitution. The gist of the allegations is that the Walds manipulated and extorted Mr. Martin into giving them money by threatening to report him for child sexual abuse if he did not pay. Mr. Martin's cross-complaint has been the subject of significant law and motion practice, as described in more detail below, with motions still pending.

Vexatious litigant motion: Plaintiffs James Wald, Natalie Wald, P.W., and Elite Sound Company, LLC move the Court for the following orders:

1. Declaring Defendant Travis E. Martin a vexatious litigant pursuant to California Code of Civil Procedure section 391(b)(3);
2. Entering a prefiling order pursuant to California Code of Civil Procedure section 391.7;
3. Directing the Court Clerk not to accept for filing any new litigation filed by Martin in propria persona unless accompanied by an order from the presiding judge granting leave to file;
4. Requiring Martin to furnish a security pursuant to California Code of Civil Procedure section 391.3 as a condition of proceeding with his Cross-Complaint, on the grounds that he is a vexatious litigant and there is no reasonable probability he will prevail; and
5. Granting such other and further relief as the Court deems just and proper.

Plaintiffs assert that Mr. Martin is a vexatious litigant within the statutory definition, commencing numerous frivolous lawsuits and, while acting in propria persona, repeatedly filing unmeritorious motions, pleadings, or other papers. Mr. Martin's tactics are frivolous and/or solely intended to cause unnecessary delay.

Mr. Martin opposes the motion on the ground that Plaintiffs failed to present sufficient evidence to support the motion. Mr. Martin maintains that no judge has found his motions frivolous, and he asserts that Mr. Bamieh has orchestrated the issues that caused Mr. Martin to file motions, such that "Mr. Bamieh is the arsonist now claiming to be the firefighter."

Discussion:

1. Plaintiffs' Request for Judicial Notice

“Judicial notice may be taken of the following matters to the extent that they are not embraced within Section 451: . . . [¶] (d) Records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.”

“Judicial notice may not be taken of any matter unless authorized or required by law.” [Citation]. Matters that are subject to judicial notice are listed in Evidence Code sections 451 and 452. A matter ordinarily is subject to judicial notice only if the matter is reasonably beyond dispute. [Citation]. Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113.)

Plaintiffs request judicial notice of the various cases identified in support of the motion. The Court grants the request.

2. Analysis

“The vexatious litigant statutes—sections 391 to 391.8—are ‘designed ... to protect opposing parties harassed by meritless lawsuits, [and] to conserve court time and resources and protect the interests of other litigants who are waiting for their legal cases to be processed through the courts.’ ” (*Karnazes v. The Lauriedale Homeowners Assn.* (2023) 96 Cal.App.5th 275, 280.),

Section 391(b) provides several definitions for a vexatious litigant. Of relevance here, a vexatious litigant is one who, “[i]n any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary.” (Code Civ. Proc. § 391, subd. (b)(3).)

Plaintiffs’ motion is based on Mr. Martin’s repeated filing of unmeritorious motions, pleadings, or other papers, unnecessary discovery, and engagement in other tactics that are frivolous or solely intended to cause unnecessary delay. Plaintiffs also reference multiple litigations asserted by Plaintiffs in the past seven years, but do not bring their motion under Code of Civil Procedure, section § 391, subdivision (b)(1).

Unmeritorious motions/pleadings and frivolous and/or delay tactics

“What constitutes ‘repeatedly’ and ‘unmeritorious’ under subdivision (b)(3), in any given case, is left to the sound discretion of the trial court.” (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 971.) However, filings that may be reasonable if viewed in isolation may be found to be unmeritorious if repeated requests for the same relief and for reconsideration of prior rulings “create an unmeritoriousness” to the filings. (*Golin v. Allenby* (2010) 190 Cal.App.4th 616, 632.)

Plaintiffs identify multiple filings in this case that demonstrate Mr. Martin’s frivolous and improper litigation tactics. For example, Mr. Martin filed two amended cross-complaints that

were later stricken because they exceeded court orders restricting the scope of the amended cross-complaint. (Bamieh Dec., ¶ 5.) Plaintiffs also identify seven verified statements of disqualification against Judge Caudill, each struck by the Court, and then twice taken up on writ to the Court of Appeal, with both writs promptly denied. (Bamieh Dec., ¶ 6.) Plaintiffs also identify various “meritless” motions such as the Motion to Remove Guardian Ad Litem James Wald; the Motion for Reconsideration of the denial of the motion to remove GAL; the motions to correct the record relating to Judicial Recusal, a motion for protective order, the motions for reconsideration of the June 5, 2026 order, three separate motions to vacate, motions for sanctions, motion for judgment on the pleadings. and the motion to disqualify Attorney Ron Bamieh. Mr. Martin has a practice of unsuccessfully challenging a ruling after a motion has been decided. The unsuccessful motions identified herein are not exhaustive, and the Court notes that after this motion was filed, Mr. Martin filed additional motions to reconsider, as well as two meritless ex parte applications and yet another writ to the Court of Appeal that was summarily denied.

Mr. Martin argues the motions were not frivolous or undertaken to cause delay.

The Court disagrees. Taken as a whole, Mr. Martin’s motion practice and repeated applications to the Court constitute “repeated” and “unmeritorious” filings under Code of Civil Procedure section 391, subdivision (b)(3). This case has been unnecessarily over-litigated by Mr. Martin, resulting in substantial waste of time and resources.

For additional context, Plaintiff points out that Mr. Martin has been or is currently involved in a significant amount of other litigation. The cases identified by Plaintiffs are:

Martin v. Carroll, et al. - Ventura County Superior Court Case No. 2023CUPP017460. The Complaint was filed on December 11, 2023 and the Judgment of Dismissal against Plaintiff Travis Martin was entered on June 7, 2024.

P.W. v. Wald, et al. - Ventura County Superior Court Case No. 2024CUPP025753, a disturbing case in which an individual with no apparent connection to the events submitted an application to be appointed as GAL for minor P.W., and filed the lawsuit on behalf of P.W. against her father, Mr. Wald, and others, for sex-trafficking P.W. to Mr. Martin and failing to protect her. Mr. Martin was not a party, but the attorney representing the proposed GAL has been an attorney for Mr. Martin in other cases. The case was dismissed.

Martin v. Wald, et al. - Ventura County Superior Court Case No. 2024CUNP032821, was filed on October 29, 2024, is assigned to Dept. 43 is still pending. There is a motion to declare Mr. Martin a Vexatious Litigant scheduled in that case for October 7, 2026.

Martin v. Carroll - Ventura County Superior Court Case No. 2024CUFR032873, was filed on November 3, 2024, is assigned to Dept. 40 and is still pending, with a jury trial scheduled for February 8, 2027.

Martin v. Colby, et al. - Ventura County Superior Court Case No. 2025CUDF048144, was filed on July 28, 2025. Judgment was entered against Defendant Travis Martin on April 7, 2026. A Notice of Appeal was filed on April 15, 2026, and no remittitur has issued.

Martin v. Ball, et al. - San Diego Superior Court Case No. 26CU038533C was filed on July 20, 2026 and there is no disposition.

Martin v. US Small Business Administration, et al, (CD Cal. 2026) Case No. 2:26-cv-03714 – the proceedings as against the Walds are stayed pending the claims in Ventura County Superior Court.

Between the meritless filings in the instant case and the numerous other litigations initiated by Mr. Martin, two of which have already proven unsuccessful, a pattern emerges of a litigant who clearly meets the definition of a vexatious litigant under both the letter and spirit of the law. The motion is granted.